



CHAPTER xc.

An Act to confirm certain Provisional Orders made by the Board of Trade under the General Pier and Harbour Act 1861 relating to Truro and Salen (Mull). A.D. 1903. —

[21st July 1903.]

WHEREAS a Provisional Order made by the Board of Trade under the General Pier and Harbour Act 1861 is not of any validity or force whatever until the confirmation thereof by Act of Parliament : 24 & 25 Vict. c. 45.

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the said Act and set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The several Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force. Confirmation of Orders in schedule.

2. The Undertakers mentioned in the said Orders shall not under the powers of this Act or of the said Orders purchase or acquire in any borough or other urban district or in any parish or part of a parish not being within an urban district or in any district in Scotland within the meaning of the Public Health (Scotland) Act 1897 as the case may be ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or Special provisions as to housing of labouring class. 60 & 61 Vict. c. 38.

[Ch. xc.] *Pier and Harbour Orders Confirmation* [3 Edw. 7.]
(No. 6) Act, 1903.

A.D. 1903. lodgers or except with the consent of the Local Government Board or in Scotland of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If any Undertakers acquire or appropriate any house or houses under the powers of this Act or of the said Orders in contravention of the foregoing provision they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court in England or by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression “labouring class” means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them and the expression “house” means any house or part of a house occupied as a separate dwelling.

Short title. **3.** This Act may be cited as the Pier and Harbour Orders Confirmation (No. 6) Act 1903.

THE SCHEDULE OF ORDERS.

1. TRURO.—Construction of works &c.
2. SALEN (MULL).—Construction of pier &c.

SCHEDULE.

A.D. 1903.

TRURO HARBOUR.

Provisional Order for the construction of further Works in Truro Harbour and for conferring further powers upon the Mayor Aldermen and Citizens of the City of Truro in the County of Cornwall in relation to that Harbour. *Truro.*

Preliminary.

1.—(1) This Order may be cited as the Truro Harbour Order 1903 and shall be construed as one with the Truro Harbour Order 1883 (in this Order called “the Order of 1883”) as amended by this Order and that Order so amended and this Order may together be cited as the Truro Harbour Orders 1883 and 1903. Short title
commence-
ment and
interpretation.

(2) This Order shall come into force upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

(3) In this Order unless the context otherwise requires the following expressions shall have the meanings herein-after assigned to them namely:—

“The Corporation” means the mayor aldermen and citizens of the city of Truro acting by the council of that city;

“The harbour” means as well the works authorised by this Order as the area comprised and included in the limits defined by section 2 of the Order of 1883.

Undertakers.

2. The Corporation shall be the Undertakers for carrying this Order into execution. Undertakers.

Limits Works and Management.

3. The limits within which the Corporation shall have authority and within which the powers of the harbour-master may be exercised and which shall be deemed to be the limits to which the Order of 1883 and this Order extend shall include the works authorised by this Order as well as the area comprised in the limits defined by section 2 of the Order of 1883. Limits.

4. Subject to the provisions of this Order and subject also to such alterations (if any) in the plan and section deposited with reference to this Order as the Board of Trade require before the completion of the works the Corporation may on the lands and in the lines and situations and according to the levels and within the limits of deviation shown on the deposited plan and section (so far as the same are shown thereon) make and maintain the works authorised by this Order with all necessary works accesses and conveniences. Power to con-
struct works.

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Truro.
Description of
works.

5. The works authorised by this Order comprise—

The deepening and improvement of the harbour the improvement of the quays the laying down buoys and moorings and the erecting or placing of other appliances or conveniences for the use of vessels frequenting the harbour :

The improvement of the navigable channel from Truro Quay to Sunny Corner Quay by widening and straightening the channel and deepening the harbour by dredging :

The construction of new quay walls for a length of three hundred and twenty yards commencing at a point in the south bank of the River Kenwyn and one hundred and five yards or thereabouts east of Lemon Bridge and continuing to a point on the west bank of Truro River one hundred and ten yards south of the point of Truro Quay from the last-named point for a distance of one hundred and ninety-eight yards the west bank of the widened channel to be protected by a stone pitched slope terminating at the south end of what is known as the reclaimed mudland about seventy yards north of the slip-way at Garras Wharf :

The said quay walls and stone pitched slope will be solid.

The said works will be wholly situate in the parishes of St. Clement and Kenwyn in the city of Truro in the county of Cornwall.

For protection
of Great West
ern Railway
Company.

6. The following provisions for the protection of the Great Western Railway Company (in this section called "the Great Western Company") shall unless otherwise agreed between the Corporation and the Great Western Company have effect (that is to say):—

In constructing the new works by this Order authorised or any portion of them the Corporation shall excavate and thereafter keep dredged the bed or foreshore of the river in front of and adjoining the Newham Station Quay leased to the Great Western Company for the whole length thereof as shown on the cross section signed by James Charles Inglis on behalf of the Great Western Company and Measham Lea on behalf of the Corporation such excavation and dredging to be carried to a depth of not less than twelve feet and not more than thirteen feet below the coping on the said quay.

Power to
deviate.

7. The Corporation may with the consent in writing of the Board of Trade in constructing the works authorised by this Order deviate laterally to any extent within the limits of deviation shown on the deposited plan and may with the like consent deviate vertically to any extent.

Penalty for
obstructing
works.

8. If any person wilfully obstructs any person acting under the authority of the Corporation in setting out the lines of the works authorised by this Order or pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of those works or defaces or destroys those works or any part thereof that person shall for each offence be liable to a penalty not exceeding five pounds.

Powers to
cease in certain
events.

9.—(1) If within two years after the commencement of this Order the works authorised by this Order are not substantially commenced the powers

[3 EDW. 7.] *Pier and Harbour Orders Confirmation* [Ch. xc.]
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by this Order given for executing those works or otherwise in relation thereto shall cease unless the time for commencement is extended by the special direction of the Board of Trade.

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(2) If the works authorised by this Order after having been substantially commenced are virtually suspended for twelve consecutive months the powers given by this Order for executing those works or otherwise in relation thereto shall cease except as to so much of those works as is then completed unless those powers are by the special direction of the Board of Trade continued and directed to remain in force for any period not exceeding five years from the commencement of this Order.

(3) In either of the above cases a certificate from the Board of Trade to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall for the purposes of this Order be conclusive evidence of the fact stated in that certificate.

10.—(1) Subject to the provisions of this Order the Corporation may from time to time construct maintain alter and improve the harbour and for the purposes and in connexion with the harbour may acquire construct provide and maintain any jetties wharves slips landing stages sewers drains watercourses roads approaches buoys moorings and other works and conveniences and may provide lay down and construct gas or electric lighting mains and other apparatus rails tramways turntables and sidings on or along the quays and other works within or connected with the harbour.

Improvement
and mainten-
ance of harbour
and works.

(2) No line of rails or tramway constructed under the powers of this Order shall be used for the public conveyance of passengers unless and until the same shall have been inspected and certified by the Board of Trade to be fit for such traffic.

(3) Any electric lighting or other apparatus constructed and provided under this Order shall be so constructed used and worked as to prevent any interference with telegraphic communication by means of any telegraph line of the Postmaster-General or with telephonic communication by means of any apparatus of the National Telephone Company Limited.

11. The Corporation may also acquire construct and maintain or take on lease all quays wharves sheds houses warehouses offices weighing-machines cranes and other works buildings and conveniences which may be found necessary or expedient for the purposes of or in connexion with the harbour Provided that nothing in this section shall empower the Corporation to construct provide or maintain such warehouses or buildings upon the mud-lands referred to in the agreement dated the ninth day of December one thousand nine hundred and two and made between the Corporation of the first part Arthur Tremayne of the second part and the Truro Gas Company of the third part except with the consent of the said parties of the said second and third parts.

Power to
acquire and
construct quays
warehouses &c.

12.—(1) In addition to the works authorised by section 5 of this Order the Corporation may deepen dredge scour and excavate any portion of the foreshore and bed of the sea within the harbour to the extent necessary to

Dredging.

[Ch. xc.] *Pier and Harbour Orders Confirmation* [3 EDW. 7.]
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A.D. 19 3. secure a good and sufficient waterway and approaches to the quays and other
Truro. works and conveniences.

(2) All rock sand mud and materials dredged up under the powers contained in this Order shall be the property of the Corporation who may from time to time sell or otherwise dispose of the same or remove or deposit the same within the harbour Provided that no rock sand mud or other material shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having been first obtained.

(3) All moneys arising from any sale or other application of any rock sand mud or other materials under this section after payment of any expenses connected therewith shall be applied as part of the revenue of the harbour.

Power to lease
warehouses &c.

13. Notwithstanding anything contained in the Harbours Docks and Piers Clauses Act 1847 the Corporation may from time to time lease or grant the exclusive use or occupation of any warehouses buildings wharves yards cranes machines or other conveniences provided by them for the purposes of their harbour undertaking (other than those erected on the mudlands referred to in the last preceding section unless the said Arthur Tremayne and the Truro Gas Company as the case may be consent thereto) to any person for such period (not exceeding seven years) and at such rents and on such terms and conditions as they think fit.

Consent of
Board of Trade
to works below
high water.

14. Works below high water shall not be commenced without the consent in writing of the Board of Trade having been first obtained and shall be executed only in accordance with such consent.

Finance.

Power to
borrow.

15.—(1) The Corporation may borrow on mortgage at interest not exceeding five per centum per annum on the security of the rates authorised by this Order such sums of money as may be required for the purposes of this Order not exceeding in the whole the sum of six thousand pounds including the sum of one thousand pounds expended by the Corporation out of the revenues of the harbour in connection with works carried out in the harbour under the Order of 1883.

(2) The Corporation may secure by mortgage under that section the payment with interest of any money due or to become due to any contractor for the execution of works authorised by this Order and any money so secured shall be considered to be money borrowed under this Order.

(3) Sections 236 237 238 and 239 of the Public Health Act 1875 shall apply to all mortgages made under this Order but in those sections as so applied the word "rates" shall mean the rates authorised by this Order.

(4) A person lending money to the Corporation shall not be concerned to inquire as to the observance by them of any provisions of this Order or be bound to see to the application or be answerable for any loss or non-application of the money lent.

Repayment of
money bor-
rowed.

16.—(1) Any sum borrowed by the Corporation under this Order shall be repaid within forty years from the date on which the sum is borrowed.

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(2) The Corporation shall pay off all moneys borrowed by them under this Order either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund.

(3) If any money borrowed under this Order is to be repaid by means of a sinking fund the Corporation shall in every year set apart for a sinking fund and accumulate in the way of compound interest (by investing the same in securities in which trustees are by law for the time being authorised to invest other than securities of the Corporation and securities transferable by delivery) such a sum as will with accumulations in the way of compound interest be sufficient to pay off the whole of the principal money borrowed within the period for which it is borrowed and the Corporation may apply any portion of the sinking fund in or towards paying off the money for the repayment of which it was created.

17.—(1) The Town Clerk shall within two months after the expiration of each year during which any sum is required to be paid as an instalment or set apart for a sinking fund under this Order transmit to the Local Government Board a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by that Board showing the amount which has been paid as an instalment or invested for the purpose of any such sinking fund during that year and the description of the securities upon which the amount has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereof have been applied during that year and the total amount remaining invested at the end of that year.

Annual return
to be made to
Local Govern-
ment Board.

(2) The Town Clerk in the event of any wilful default in making the return under this section shall be liable to a penalty not exceeding twenty pounds and that penalty shall be paid to the Local Government Board and shall be recoverable by that Board in a summary manner.

(3) If it appears to the Local Government Board by the return under this section or otherwise that the Corporation have failed to pay any instalment or to set apart in accordance with the provisions of this Order any sum required by this Order for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Order the Local Government Board may by order direct that a sum not exceeding double the amount in respect of which the default has been made shall be set apart and invested as part of the sinking fund and such Order shall be enforceable by writ of mandamus to be obtained by the Board of Trade out of the High Court.

18.—(1) If the Corporation pay off any part of any money borrowed by them under this Order otherwise than by means of instalments or a sinking fund they may re-borrow that money.

Power to re-
borrow.

(2) All moneys so re-borrowed shall be repaid within the period fixed for the repayment of the money in lieu of which the re-borrowing has been made and any amounts re-borrowed shall be deemed to form the same loan as the moneys in lieu of which the re-borrowing has been made and the obligations of the Corporation with respect to the repayment of that money shall not be in any way affected by the re-borrowing.

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A.D. 1903.

Truro.

Power to make
byelaws.

Byelaws.

19.—(1) The Corporation may without prejudice to the power to make byelaws under section 83 of the Harbours Docks and Piers Clauses Act 1847 make byelaws to take effect within the harbour for the regulation and control of vessels and boats and for the regulation and control of persons embarking disembarking frequenting or resorting to or employed in the harbour and for the licensing of pleasure boats and boats plying for hire and the persons in charge thereof and for regulating and fixing the fares to be charged by those licensed persons.

(2) The byelaws may provide for imposing and recovering a penalty not exceeding forty shillings for the breach or non-observance of any byelaw.

(3) No byelaw shall come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

(4) Sections 84 and 85 of the Harbours Docks and Piers Clauses Act 1847 shall not be incorporated with this Order.

(5) The Corporation shall not under this Order make or enforce byelaws for any purpose for which they have power under the Public Health Acts to make byelaws.

Lights.

As to lights
during con-
struction of
works.

20.—(1) Before commencing the works authorised by this Order the Corporation shall apply to the Board of Trade for directions as to the lights to be exhibited and other means to be taken for preventing danger to navigation and shall in all respects obey any direction given upon that application or afterwards given as to the like matters by the Board of Trade during the construction of the works and compliance with the directions so given shall satisfy and be in place of every other statutory requirement as to those matters during the construction of the works.

(2) The Corporation shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe any such direction.

As to lights
after comple-
tion of works.

21.—(1) After completion or permanent discontinuance or abandonment of the works authorised by this Order or the Order of 1883 the Corporation shall exhibit at the outer extremity of the works or the completed portions thereof or in such other places as may be required for all or any part of the time from sunset to sunrise and according to the requirements of the traffic and the season of the year such lights (if any) and take such other steps for the prevention of danger to navigation as may from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to the said Corporation of Trinity House for such directions.

(2) The Corporation shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to obey any such directions.

Provision
against danger
to navigation.

22.—(1) In case of injury to or destruction or decay of the works authorised by this Order or the Order of 1883 or any part thereof the

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Corporation shall lay down such buoys exhibit such lights or take such other means for preventing (as far as may be) danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to the said Corporation of Trinity House for such directions.

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Truro.

(2) The Corporation shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to obey any such directions.

Rates.

23. When in addition to the certificate to be granted under section 26 of the Harbours Docks and Piers Clauses Act 1847 a certificate has been obtained from the Board of Trade that all consents and approvals on the part of the Board of Trade required under this Order or otherwise necessary for the due construction of the works authorised by this Order have been given the Corporation may subject to the provisions of this Order demand recover and receive for the use of the harbour and in respect of vessels boats passengers animals fish and goods and also in respect of services rendered described in the Schedule to this Order any sums not exceeding the several rates specified in that schedule.

Power to levy rates.

24. When and so soon as it shall be at any time or from time to time certified in writing under the hand of an officer to be appointed for the purpose by the Board of Trade and paid by the Corporation that the works authorised by this Order have been so far completed as to afford increased accommodation for the traffic of the harbour by means of such works the Corporation may notwithstanding the twenty-fifth section of the Harbours Docks and Piers Clauses Act 1847 and although the whole of the works authorised by this Order shall not then have been completed demand receive and recover such of the rates or such proportion of all or any of the rates specified in the schedule to this Order as shall in the opinion of the Board of Trade be commensurate with the increased accommodation afforded.

Rates may be levied though works not completed.

25. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life and also all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to in over and from the harbour without payment.

Exemption of lifeboat crews.

26.--(1) The Corporation within one month after sending to the clerk of the peace the copy of their annual account in abstract (which account is to be made up to the end of the Thirty-first day of March in each year) shall send a copy of the same to the Board of Trade and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any and every such account.

Annual account to be sent to Board of Trade.

(2) If the Corporation refuse or neglect to comply with this provision they shall for every such refusal and neglect be liable to a penalty not exceeding twenty pounds.

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A.D. 1903.

Truro.
Accounts and
audit.

27.—(1) The Board of Trade unless they see special reason to the contrary shall appoint a person to be permanent auditor to examine and audit the accounts to be kept under this Order and shall fix the payments to be made to him for salary and for expenses (if any) and the amount of the salary and expenses (if any) shall be paid by the Corporation out of the rates or other income received by them under this Order.

(2) The Board of Trade may at any time revoke the appointment of any person as auditor and thereupon unless they see special reason to the contrary shall appoint another person as auditor.

(3) The Corporation shall on demand by the auditor produce to him all books accounts deeds papers writings and other documents or information in their possession or power relating to the undertaking by this Order authorised and afford him all reasonable facilities for conducting the examination and audit.

(4) If the Corporation refuse or neglect to comply with any of the provisions of this section they shall be liable to a penalty not exceeding twenty pounds for every month during which they refuse or neglect so to comply.

Application of
revenue.

28. The Corporation shall apply the rates and charges received under this Order for the purposes and in the order following and not otherwise (that is to say):—

- (1) In paying the expenses of the maintenance and repair of the harbour and all works buildings and conveniences connected therewith and the management and regulation of the same and in defraying the other expenses of the Corporation properly incurred in relation to the undertaking authorised by this Order;
- (2) In paying so much of the costs charges and expenses of and incidental to obtaining this Order as shall not be otherwise discharged;
- (3) In paying year by year the interest on money borrowed under this Order;
- (4) In paying year by year the instalments as they become due in discharge of any money borrowed and repayable by instalments;
- (5) In creating the sinking fund;
- (6) Any balance that remains after answering the purposes aforesaid shall subject to the provisions of this Order as to revision of rates be applied in the general improvement of the harbour and the works buildings and conveniences connected therewith.

Life-saving Apparatus.

Portions of Har-
bours Clauses
Act excepted.

29. Sections 16 to 19 of the Harbours Docks and Piers Clauses Act 1847 shall not be incorporated with this Order but the Corporation shall whenever required by the Board of Trade provide at their own expense and to the satisfaction of the Board of Trade a site in or near the harbour and build on such site a house and other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus and shall be liable to a penalty not

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exceeding ten pounds for every month during which they omit to provide such accommodation after being required so to do by the Board of Trade. A.D. 1903.

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30. The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or apparatus for saving life may either permanently or temporarily and from time to time without payment attach or cause to be attached to any part of the harbour spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the harbour. Life saving apparatus may be attached to pier.

31. The Corporation shall at all times keep at convenient places in or about the harbour and in obedience to any requirements which may from time to time be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use. Lifebuoys.

Miscellaneous.

32. The following sections of the Order of 1883 shall extend to the harbour in like manner as if they were re-enacted in this Order (that is to say):— Applying certain provisions of Order of 1883.

Section 2 Limits of Order.

Section 7 Corporation may provide and license steam tugs.

Section 8 Corporation may provide steam engines dredgers &c.

Section 9 Charges for steam tugs.

Section 10 Rates to be revised.

Section 12 Certain fishing vessels under stress of weather exempt from rates.

Section 17 Application of money borrowed.

Section 18 Priorities in application of money borrowed.

Section 21 Meters and weighers.

Section 25 Saving rights of the Duchy of Cornwall.

33. Sections 3 4 5 6 11 13 14 15 16 19 20 22 23 and 24 of the Order of 1883 and the Schedule to that Order are hereby repealed. Repeal.

34. Nothing in this Order contained shall prejudice any rights which have been hitherto exerciseable by the Right Honourable Evelyn Edward Thomas Viscount Falmouth C.B. in respect of the foreshore belonging to him adjoining Malpas Road within the limits aforesaid. Saving rights of Lord Falmouth.

35.—(1) Nothing in this Order contained shall prejudice any rights which have been hitherto exerciseable by the Right Honourable George Crespigny Brabazon Baron Vivian or his predecessors in respect of the foreshore adjoining the manor of Newham and claimed by him as belonging to him and no works shall be executed which would interfere in any way with the right of the owner of the Newham Estate to construct additional wharves between Newham Railway Station and Lower Newham Quay in conformity with a certain plan of wharves proposed to be constructed on the banks of the Truro River which plan was prepared under the direction of the Lords Commissioners for executing the office of Lord High Admiral and deposited at the office of the town clerk of the city of Truro. For protection of Lord Vivian.

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- A.D. 1903. (2) Notwithstanding anything to the contrary in this Order contained
Truro. none of the works buildings or conveniences by this Order authorised to be
executed or constructed shall be executed or constructed on any land or
foreshore belonging to the said George Crespigny Brabazon Baron Vivian
or his sequels in title except with his or their previous consent in writing.
- For protection 36. Notwithstanding anything in this Order to the contrary Walter
of Walter Kruse or other the owner for the time being of the estate known as Park in
Kruse. the parish of St. Clement shall be permitted to land free of all dues at his
own quay any materials or things for use upon the said estate.
- For protection 37. For the protection of all the owners of private quays the Corpora-
of owners of tion shall be bound to underpin and make secure the foundations of any such
private quays. quay wall if any dredging blasting or scouring is performed whereby the said
wall is rendered insecure.
- Saving rights 38. Nothing herein contained shall authorise the Corporation to take
of Crown. use or in any manner interfere with any portion of the shore or bed of the
sea or of any river channel creek bay or estuary or any lands hereditaments
subjects or rights of whatsoever description belonging to the King's most
Excellent Majesty in right of His Crown and under the management of
the Commissioners of Woods or of the Board of Trade respectively without
the consent in writing of the Commissioners of Woods or the Board of Trade
as the case may be on behalf of His Majesty first had and obtained for that
purpose (which consent such Commissioners and such Board are hereby
respectively authorised to give) neither shall anything herein contained
extend to take away prejudice diminish or alter any of the estates rights
privileges powers or authorities vested in or enjoyed or exerciseable by the
King's Majesty.
- Extension of 39. Sections 28 and 99 of the Harbours Docks and Piers Clauses
10 & 11 Vict. Act 1847 as incorporated with this Order shall apply to and for the benefit
c. 27 (ss. 28 of any Government department in the same manner as they apply to and for
and 99) to all the benefit of the Government departments specially named in those sections.
Government
departments.
- Recovery of 40. All penalties under this Order shall be recovered and applied as
penalties. penalties are recoverable and applicable under the Harbours Docks and
Piers Clauses Act 1847 and for all the purposes of that Act this Order shall
be deemed the special Act.
- Costs of Order. 41. All the costs charges and expenses of or incidental to the obtaining
of this Order or otherwise incurred in relation thereto as taxed by the proper
officer shall be paid by the Corporation.
- Harbour to be 42. The harbours and works authorised by this Order shall for all
deemed within purposes be deemed and taken to be within the city of Truro in the county
city of Truro. of Cornwall.

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The SCHEDULE to which the foregoing Order refers.

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Truro.

I.—RATES ON VESSELS AND BOATS USING THE HARBOUR FOR SHIPPING
UNSHIPPING OR TRANSHIPPING GOODS.

	s.	d.
On each coasting vessel per ton register	0	2
If such vessel remains in the harbour for more than two months continuously then for every month or part of a month after the first two months per ton register	0	1
On each vessel from or to foreign parts per ton register	0	3

II.—RATES ON OTHER VESSELS.

On each wind-bound vessel remaining more than forty-eight hours and not breaking bulk per ton register	0	0½
On each vessel entering the harbour for orders or for refuge and remaining more than seven days and not breaking bulk per ton register	0	0½

III.—RATES ON TIMBER BRICKS CEMENT LIME LIMESTONE STONE
MERCHANDISE AND MINERALS SHIPPED UNSHIPPED OR TRANSHIPPED
WITHIN THE HARBOUR FOR ANY PORT OUTSIDE THE
BLACK ROCK OR CARRIED IN VESSELS OR BOATS OR BY RAFT
ABOVE VICTORIA POINT.

For every 50 cubic feet of timber	0	1½
For bricks cement limestone salt and manures (other than and except guano sulphate of ammonia and nitrate of soda) per ton	0	1½
For all merchandise and minerals not already paying dues including guano sulphate of ammonia and nitrate of soda per ton	0	3

In charging dues the gross measurement or weight shall be taken and for any less measurement or weight than above mentioned a proportionate amount shall be charged.

After a vessel carrying merchandise has been in the harbour five times in one year the person owning or chartering such vessel shall not be liable for any further rates per ton register in respect of such vessel for the remainder of the year however often such vessel may carry merchandise into the harbour during that period and the person owning a vessel carrying merchandise into the harbour shall compound by paying to the Corporation on the first day of January in every year for all rates per ton register in respect of such vessel for the then current year but this provision shall in no way affect the liability of such vessel to dues in respect of the merchandise carried by any such vessel.

[Ch. xc.] *Pier and Harbour Orders Confirmation* [3 EDW. 7.]
(No. 6) *Act*, 1903.

A.D. 1903.

SALEN (MULL) PIER.

Salen (Mull). Provisional Order for the Construction and Maintenance of a Pier and Works and Access Road at Salen in the Island of Mull in the County of Argyll.

Preliminary.

Short title
and commence-
ment.

1.—(1) This Order may be cited as the Salen (Mull) Pier Order 1903.

(2) This Order shall come into force upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

Definition.

2. In construing this Order and the Acts incorporated therewith the word “works” shall mean and include the works authorised by this Order and every part of those works.

Undertakers.

Undertakers.

3. Joseph William Melles of Gruline in the Island of Mull and his successors in title to the estate of Gruline shall be the Undertakers for carrying this Order into execution and he and they are in this Order referred to as the Undertakers.

Powers not to
be exercised
unless under-
taking is trans-
ferred to a
Company.

4.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade allow after the commencement of this Order the Undertakers transfer the undertaking to a company to be incorporated under the Companies Acts 1862 to 1900 for the purpose of carrying into effect the powers of this Order.

(2) Within that period the Undertakers may transfer and the said company may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect to the undertaking shall be transferred to and may be exercised by and shall attach to the said company and the said company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

Acquisition of Lands.

Power to take
lands by
agreement.

5. For the purposes of the works the Undertakers may from time to time by agreement enter on take and use all or such parts of the lands shown on the plan deposited with reference to this Order as they may think requisite for the purposes of the works.

Incorporation
of Lands
Clauses Acts.

6. The Lands Clauses Consolidation (Scotland) Act 1845 and the Lands Clauses Consolidation Acts Amendment Act 1860 (in this Order called “the

[3 EDW. 7.] *Pier and Harbour Orders Confirmation* [Ch. xc.]
(No. 6) Act, 1903.

Lands Clauses Acts") except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking are hereby incorporated with this Order.

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7. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Undertakers any servitude right or privilege (not being a servitude right or privilege of water in which other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands feu-duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights or privileges as aforesaid respectively.

Owners may
grant servi-
tudes, &c.

Works.

8. Subject to the provisions of this Order and subject also to such alterations if any in the plans and sections deposited with reference to this Order as the Board of Trade require from time to time before the completion of the works the Undertakers may in the lines and situation and according to the levels shown on the deposited plans and sections and within the limits of deviation shown on those plans and herein-after prescribed make and maintain the works authorised by this Order.

Construction
of works.

9. The works authorised by this Order are—

Work No. 1.—A pier commencing at a point 23 yards or thereabouts measured in a north-easterly direction from the eastmost corner of the piermaster's house at Salen in the Island of Mull and terminating in the bed of the sea at a point 99 yards or thereabouts measured in a northerly direction from the aforesaid point of commencement:

Description of
works.

The pier will consist of a pier head of solid work carrying an open timber superstructure and approached by a solid work and open timber approach gangway:

Work No. 2.—An approach road commencing by a junction with the road leading from Salen to the existing pier at a point on that road 94 yards or thereabouts south of the south-west corner of the piermaster's house and terminating at the commencement of Work No. 1 above described.

10.—(1) The limits within which the Undertakers shall have authority and within which the powers of the piermaster may be exercised shall comprise the works and an area below high-water mark lying within 300 feet on either side or in front of the pier which limits are in this Order termed "the limits of this Order."

Limits.

(2) The limits within which the power to levy rates may be exercised shall comprise the works and the following area below high water mark that is to say an area lying within one hundred feet of any part of the works.

11. The Undertakers in the execution of the works may with the consent of the Board of Trade deviate laterally to any extent within the

Powers of
deviation.

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A.D. 1903. limits of deviation marked on the deposited plan and may with the like consent deviate vertically to any extent.
Salen (Mull).

Consent of Board of Trade to works below high-water mark. 12. The works below the line of high-water mark shall not be commenced without the consent of the Board of Trade having been first obtained in writing and shall be executed in accordance with such consent.

Power to make embankments &c. 13. The Undertakers may make and maintain in connection with the works all necessary and proper embankments excavations quays jetties landing places slips roads approaches sheds and gas and water pipes and other works and conveniences.

Penalty for obstructing works. 14. Every person who wilfully obstructs any person acting under the authority of the Undertakers in setting out the lines of the works or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of the works or defaces or destroys the works shall for every such offence be liable to a penalty not exceeding five pounds.

Power to cease in certain events. 15.—(1) If within two years from the commencement of this Order the works are not substantially commenced the powers given by this Order for executing the works or otherwise in relation thereto shall cease unless the time for commencement be extended by the special direction of the Board of Trade.

(2) If the works after having been substantially commenced should be virtually suspended for twelve consecutive months the powers by this Order given for executing the works or otherwise in relation thereto shall cease except as to so much of the works as shall be then completed unless such powers shall by the special direction of the Board of Trade be continued and directed to remain in force for any period not exceeding five years from the commencement of this Order.

(3) In either of the above cases a certificate from the Board of Trade to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall for the purposes of this Order be conclusive evidence of the facts stated in such certificate.

Management.

Power to dredge. 16.—(1) The Undertakers may within the limits of this Order deepen dredge scour and excavate any portion of the foreshore or bed of the sea to the extent necessary to secure a sufficient waterway and approach to the works for vessels using the same.

Disposal of dredging. (2) All sand mud and other materials dredged up or removed within the limits of this Order shall be the property of the Undertakers and they may sell or otherwise dispose of the same or lay down the same in another place within those limits as they think fit.

(3) Sand mud stone or other material shall not be laid down or deposited in any place below high-water mark without the consent of the Board of Trade having been first obtained.

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(No. 6) Act, 1903.

(4) All money arising from any sale or other disposition of sand mud and other materials under this section after payment of the expenses connected therewith shall be applied in the same manner as the revenue received from rates under this Order is to be applied. A.D. 1903.
Salen (Mull).

17. A vessel shall not anchor within the limits of this Order without the consent of the Undertakers or their piermaster. Vessels not to anchor within certain limits.

18. A vessel shall not be moored to or alongside the pier without the consent of the Undertakers or their piermaster. Vessels not to moor alongside pier without consent.

19. The Undertakers shall have the appointment of meters and weighers within the limits of this Order. Meters and weighers.

20.—(1) Without prejudice to the power to make byelaws conferred by section 83 of the Harbours Docks and Piers Clauses Act 1847 the Undertakers may make byelaws for the regulation and control— Power to make byelaws.

Of vessels within the limits of this Order ;

Of the fishermen and others frequenting or resorting to or employed at the pier or within the limits of this Order ;

Of the embarking disembarking loading or unloading of any goods or traffic at the pier or within the limits of this Order.

(2) The byelaws may provide for imposing and recovering a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(3) A byelaw under this section shall not come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

(4) Sections 84 and 85 of the Harbours Docks and Piers Clauses Act 1847 shall not be incorporated with this Order.

Rates.

21. When in addition to the certificate to be granted under section 26 of the Harbours Docks and Piers Clauses Act 1847 a certificate has been obtained from the Board of Trade that all consents and approvals on the part of the Board of Trade required under this Order or otherwise necessary for the due execution of the works have been given the Undertakers may subject and according to the provisions of this Order for the use of the pier and works and conveniences connected therewith demand receive and recover in respect of vessels boats persons goods animals fish and things and of services rendered described in the schedule to this Order any sums not exceeding the several rates specified in the said schedule. Power to levy rates.

22. When and so soon as it shall be at any time or from time to time certified in writing under the hand of an officer to be appointed for the purpose by the Board of Trade and paid by the Undertakers that the works have been so far completed as to afford accommodation for the landing and embarking or the shipping and unshipping of animals or goods by Rates may be levied although works not completed.

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- A.D. 1903.** means of the works the Undertakers may notwithstanding the twenty-fifth section of the Harbours Docks and Piers Clauses Act 1847 and although the whole of the works have not then been completed demand recover and receive in respect of the works such of the rates or such proportion of all or any of the rates specified in the schedule to this Order as shall in the opinion of the Board of Trade be commensurate with the accommodation afforded.
- Salen (Mull).***
- Power to vary exemptions and compound for rates.** 23. The Undertakers may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the works under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order.
- Piermaster may prevent sailing of vessels.** 24. The piermaster may prevent the removal or sailing from the limits of this Order of any vessel in respect of which or of the goods imported or exported therein any rates are payable until evidence has been produced to him of the payment of those rates to the collector.
- Rates in Part I. of schedule not to be levied unless rates in Parts II. and IV. are levied.** 25. Notwithstanding anything contained in this Order the Undertakers shall not levy the rates authorised by Part I. (Rates on Vessels) of the schedule to this Order unless they also levy the rates authorised by Part II. (Rates on Goods Shipped &c.) and Part IV. (Rates on Passengers &c.) of that schedule.
- Rates for use of warehouses &c.** 26. The Undertakers may demand and receive such rates or other consideration as they may think reasonable for the use of any warehouses sheds buildings works lighters and conveniences belonging to or leased by the Undertakers for the use of which rates are not specially fixed in the schedule to this Order.
- Certain fishing vessels under stress of weather exempt from rates.** 27. Fishing vessels belonging to countries with which for the time being treaties exist exempting such vessels from dues and port charges when forced by stress of weather to seek shelter in the ports or on the coasts of the United Kingdom shall when forced by stress of weather to make use of the works and not breaking bulk while making use thereof be exempt from rates leviable under this Order.
- Exemption of lifeboat crews.** 28. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and also all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to or along and on and from the pier and works without payment.
- Power to sell or lease undertaking.** 29. The Undertakers may lease for any term not exceeding seven years their undertaking or the rates and charges authorised to be taken by this Order or may let for hire or lease for any term not exceeding seven years any rooms or buildings connected with the pier separately from any other part of the pier and works to any company or body or person upon such terms

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(pecuniary or otherwise) and under such restrictions and conditions as they think fit and the lessee during the continuance of his lease and to the extent provided in such lease shall have and may exercise all or any of the powers conferred upon the Undertakers by this Order (including powers of levying and recovering rates and charges) which the Undertakers have or might exercise under the Harbours Docks and Piers Clauses Act 1847 or this Order and shall be subject to the same provisions as to accounts and otherwise as the Undertakers are made subject to by this Order.

A.D. 1903.
Salen (Mull).

Finance.

30. The Undertakers may borrow and re-borrow at interest such money as may be required for the purposes of this Order not exceeding in the whole the sum of three thousand five hundred pounds on the security of the rates authorised by this Order or they may accept and take from any bank or banking company credit for any amount not exceeding in the whole the said sum of three thousand five hundred pounds on a cash account to be opened and kept in the names of the Undertakers according to the usage of bankers in Scotland but so that the whole sum owing by the Undertakers on such cash account and for other money borrowed and for the time being unpaid shall not exceed in the whole the sum of three thousand five hundred pounds exclusive of interest and the Undertakers may grant bonds and assignments of the works and of the rates under this Order in security of the repayment of the sum or sums so borrowed or of the amount of such credit or of the sums advanced from time to time on such cash account with interest thereon respectively and such bonds and assignments and any transfers thereof may be in the forms contained in Schedules (B) and (C) annexed to the Burgh Harbours (Scotland) Act 1853 or to the like effect and shall be recorded in the Division of the General Register of Sasines at Edinburgh applicable to the county of Argyll.

Power to borrow money.

31. All money borrowed under this Order shall be applied only for the purposes of the Order to which capital money may properly be applied and not otherwise.

Application of money borrowed.

32.—(1) The mortgagees of the Undertakers in respect of money borrowed under this Order may enforce payment of arrears of interest or principal and interest due on their mortgages by the appointment of a judicial factor.

Appointment of a judicial factor.

(2) In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than three hundred pounds in the whole.

(3) Sections 56 and 57 of the Companies Clauses Consolidation (Scotland) Act 1845 shall be incorporated with this Order and for the purposes of those sections this Order shall be deemed to be the special Act.

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Salen (Mull).
Contingency
fund.

33. The Undertakers may if they think fit for the purpose of forming and maintaining a contingency fund not exceeding at any time the sum of five hundred pounds to meet any extraordinary claim or demand or any unforeseen accident or extraordinary damage which may happen or be caused to the works appropriate and set apart subject to the provisions of this Order as to application of revenue any amount which they think fit in any year out of the revenue received under this Order and shall deposit any such amount in some joint stock bank of issue in Scotland to be increased by accumulation in the way of compound interest or otherwise invested in trust securities until required for any of the aforesaid purposes.

Application of
rates received.

34. The revenue received from rates or otherwise under this Order shall be applicable for the purposes and in the order following and not otherwise :—

- (1) In paying the costs of and connected with the preparation and making of this Order ;
- (2) In paying the expense properly chargeable to revenue of the maintenance repair and management of the works and all conveniences connected therewith ;
- (3) In payment year by year of the interest accruing on money borrowed under this Order ;
- (4) In making such payments (if any) as the Undertakers think fit into a contingency fund established under the provisions of this Order ;
- (5) The surplus (if any) after providing for the purposes aforesaid shall belong to the Undertakers for their own use.

Annual
account to be
sent to Board
of Trade.
25 Viet. c. 19.

35. The Undertakers shall within one month after sending to the sheriff clerk the copy of their annual account in abstract (which account is to be made up to the end of the day on the thirty-first day of March in each year) send a copy of the same to the Board of Trade and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any such account If the Undertakers refuse or neglect to comply with the provisions of this section they shall for every such refusal or neglect be liable to a penalty not exceeding twenty pounds.

Board of Trade
may reduce
rates.

36. If at any time and from time to time the clear annual income derived from the pier and works on the average of the then three last preceding years after payments to a contingency fund established under the provisions of this Order and after payment of all expenses and outgoings other than payments of interest or principal in respect of money borrowed shall exceed interest at the rate of ten pounds per centum per annum on the entire sum from time to time appearing to the Board of Trade to have been expended by the Undertakers on the works the Board of Trade may if in their discretion they think fit reduce the rates and charges leviable under this Order to such amounts as will be sufficient to provide the aforesaid interest at the rate of ten pounds per centum per annum and the rates and charges shall thereupon be reduced accordingly but with power to the Board of Trade at any time and from time to time to raise them again to sums not exceeding the several amounts specified in the schedule to this Order.

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Life-Saving Apparatus.

37. Sections 16 to 19 inclusive of the Harbours Docks and Piers Clauses Act 1847 shall not be incorporated with this Order but the Undertakers shall at their own expense when required by the Board of Trade provide to the satisfaction of the Board of Trade a site near the pier and build on such site a house and other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus and shall be liable to a penalty not exceeding ten pounds for every month during which they omit to provide such accommodation after being required by the Board of Trade so to do.

Salen (Mull).
Portions of
Harbours
Clauses Act
excepted.

38. The officers of the coastguard and all other persons for the time being actually employed in connexion with the lifeboat or the apparatus for saving life may either permanently or temporarily and from time to time and without payment attach or cause to be attached to any part of the works spars and other apparatus for saving life and may also either in course of using or exercising the apparatus for saving life fire rockets over the works and limits of this Order.

Apparatus for
saving life may
be attached to
pier.

39. The Undertakers shall at all times keep at convenient places on the pier and in obedience to any requirements which may from time to time be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use.

Lifebuoys &c.

Lights.

40.—(1) Before commencing the works the Undertakers shall apply to the Board of Trade for directions as to the lights to be exhibited and other means to be taken for preventing danger to navigation and shall in all respects obey any directions given upon that application or afterwards from time to time given as to the like matters by the Board of Trade during the construction of the works and compliance with the directions so given shall satisfy and be in place of every other statutory requirement as to those matters during the construction of the works.

As to lights
during con-
struction of
works.

(2) The Undertakers shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe any such directions.

41.—(1) After completion or permanent discontinuance or abandonment of the works authorised by this Order the Undertakers shall exhibit at the outer extremity of the pier or the completed portion thereof or in such other place as may be required for all or any part of the time from sunset to sunrise according to the requirements of the traffic and the season of the year such lights (if any) and take such other steps for the prevention of danger to navigation as are directed by the Commissioners of Northern Lighthouses and shall apply to those Commissioners for such directions.

As to lights
after comple-
tion of works.

(2) The Undertakers shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe any such directions.

[Ch. xc.] *Pier and Harbour Orders Confirmation* [3 EDW. 7.]
(No. 6) Act, 1903.

A.D. 1903.

Salen (Mull).
Provision
against danger
to navigation.

42.—(1) In case of injury to or destruction or decay of the works the Undertakers shall lay down such buoys exhibit such lights or take such other means for preventing (as far as may be) danger to navigation as shall from time to time be directed by the Commissioners of Northern Lighthouses and shall apply to those Commissioners for such directions.

(2) The Undertakers shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe any such directions.

Miscellaneous.

Recovery of
penalties.
10 & 11 Vict.
c. 27.

43. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Docks and Piers Clauses Act 1847 and for all the purposes of that Act this Order shall be deemed to be the special Act.

Extension of
10 & 11 Vict. c. 27
(ss. 28 and 99)
to all Govern-
ment depart-
ments.

44. Sections 28 and 99 of the Harbours Docks and Piers Clauses Act 1847 as incorporated with this Order shall apply to and for the benefit of any Government department in the same manner as they apply to and for the benefit of the Government departments specially named in those sections.

Saving rights
of Crown.

45. Nothing herein contained shall authorise the Undertakers to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Costs of Order.

46. All the costs charges and expenses of and incidental to preparing and obtaining this Order or otherwise incurred in relation thereto shall be paid by the Undertakers.

Works to be in
parish of Penny-
gown and Torosay
in Island of Mull.

47. The works shall be deemed to be for all purposes within the parish of Pennygown and Torosay in the Island of Mull and County of Argyll.

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(No. 6) Act, 1903.

The SCHEDULE to which the foregoing Order refers.

A.D. 1903.
Salen (Mull).

I.—RATES ON VESSELS.

(1) *Tonnage Rates on Vessels other than Fishing Vessels
exclusive of their Cargoes.*

All vessels entering within the limits of this Order to load or
unload at the pier:—

	£	s.	d.
Under 50 tons—per registered ton	0	0	4
Of 50 tons and not exceeding 100 tons—per registered ton...	0	0	6
Of 100 tons and upwards—per registered ton	0	0	7

(2) *Rates on Fishing Vessels exclusive of their Cargoes.*

Every boat or vessel on each occasion of loading or discharging herrings at the pier	0	2	6
Or in full of rates per annum payable in advance	1	0	0
Every boat or vessel on each occasion of discharging white fish at the pier	0	1	0
Or in full of rates per annum payable in advance	0	7	6

II.—RATES ON GOODS SHIPPED OR UNSHIPED AT THE PIER.

	s.	d.
Aerated waters per case of 6 dozen bottles	0	3
Aerated water cases of 6 dozen bottles (empty) each	0	1
Ale beer and porter per barrel of 36 gallons	0	6
Ale beer and porter per half barrel of 18 gallons	0	4
Ale beer and porter per firkin of 9 gallons	0	2
Ale beer and porter (bottled) per dozen	0	1
Anchors per ton	3	0
Anchor stocks per ton	3	0
Bark per ton	2	6
Barrels (empty) each	0	1
Bedding per ton	3	4
Bread or biscuit per cwt.	0	4
Bottles per cwt.	0	2
Boxes (contents not particularly herein specified) exceeding 20 lbs. each	0	4
Boxes (contents not particularly herein specified) 20 lbs. and under each	0	2
Bricks per ton	2	0
Butcher meat—		
Mutton per carcase... ..	0	4
Mutton per half carcase or less	0	2
Beef or other meat per carcase	1	6
Beef or other meat per half carcase or less	0	9

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A.D. 1903.								s.	d.
<u>Salen (Mull).</u>	Butter lard and smearing grease per cwt.	...	...	...	...	...	...	0	3
	Cables iron or hempen per ton	...	...	...	...	...	...	3	4
	Canvas per thirty-six yards	...	...	...	...	...	...	0	1
	Carriages—								
	Chaises and other four-wheeled carriages each	...	...	...	...	...	...	2	6
	Gigs and other two-wheeled carriages each	...	...	...	...	...	...	1	6
	Carts each	...	...	...	...	...	...	1	0
	Cart or carriage wheels each	...	...	...	...	...	...	0	3
	Hand-carts and perambulators each	...	...	...	...	...	...	0	3
	Wheelbarrows each	...	...	...	...	...	...	0	2
	Casks (empty) each	...	...	...	...	...	...	0	1
	Cattle—								
	Bulls each	...	...	...	...	...	...	0	6
	Cows and oxen each	...	...	...	...	...	...	0	4
	Stirks each	...	...	...	...	...	...	0	3
	Calves each	...	...	...	...	...	...	0	2
	Horses asses and mules each	...	...	...	...	...	...	1	0
	Foals each	...	...	...	...	...	...	0	6
	Entire horses each	...	...	...	...	...	...	1	6
	Sheep per score	...	...	...	...	...	...	0	9
	Lambs per score	...	...	...	...	...	...	0	6
	Lambs (returning from wintering) per score	...	...	...	...	...	...	0	9
	Sheep or lambs—for any smaller number than half a score each	...	...	...	...	...	...	0	1
	Pigs each	...	...	...	...	...	...	0	3
	Goats each	...	...	...	...	...	...	0	1
	Other animals (live) not particularly herein specified each	...	...	...	...	...	...	1	0
	Cement per cwt.	...	...	...	...	...	...	0	2
	Cement per ton	...	...	...	...	...	...	1	6
	Chalk per ton	...	...	...	...	...	...	1	6
	Cheese per cwt.	...	...	...	...	...	...	0	3
	Chimney pots each	...	...	...	...	...	...	0	1
	Clay per ton	...	...	...	...	...	...	0	9
	Cloth haberdashery &c. per cwt.	...	...	...	...	...	...	0	6
	Coals coke cinders and charcoal per cwt.	...	...	...	...	...	...	0	1
	Copper per ton	...	...	...	...	...	...	3	4
	Cordage per ton	...	...	...	...	...	...	5	0
	Cork per ton	...	...	...	...	...	...	3	4
	Crystal crockery earthenware glass &c. per cwt.	...	...	...	...	...	...	0	3
	Coffins each	...	...	...	...	...	...	2	0
	Cycles each	...	...	...	...	...	...	0	2
	Cycles in cases each	...	...	...	...	...	...	1	0
	Deer (live) each	...	...	...	...	...	...	1	0
	Deer crates (empty) each	...	...	...	...	...	...	0	6
	Dip per tin of 28 lbs.	...	...	...	...	...	...	0	1
	Dip per large drum exceeding 28 lbs. and not exceeding 112 lbs	...	...	...	...	...	...	0	2
	Dogs (sporting only) each	...	...	...	...	...	...	0	6

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	s.	d.	A.D. 1903.
Eggs per 12 dozen and under	0	4	—
Empties not particularly herein specified each	0	1	<i>Salon (Mull).</i>
Firkins and jars each	0	2	
Fish (dried or salted except as otherwise specified) per cwt. ...	0	2	
Fish (fresh except as otherwise specified) per cwt.	0	2	
Cod ling skate turbot and halibut per score	0	2	
Saimon grilse sea trout or bull trout per cwt.	0	6	
Flax per ton	3	4	
Flour and meal per bag of 280 lbs.	0	3	
Flour and meal per half bag of 140 lbs.	0	2	
Flour and meal per ton	1	4	
Fruit per cwt.	0	3	
Furniture (household) per 5 cubic feet	0	6	
Game of all kinds per score	0	6	
Geese and turkeys (live) each	0	1	
Grains including barley beans Indian corn malt oats peas rye seeds of all kinds and feeding stuffs per bag of 280 lbs.	0	3	
Grains including barley beans Indian corn malt oats peas rye seeds of all kinds and feeding stuffs per ton	1	4	
Groceries per cwt.	0	2	
Guano and artificial manure per bag of 2 cwt. and less	0	2	
Guano and artificial manure per ton	3	4	
Gunpowder dynamite and other explosives per 100 lbs.	0	6	
Hams bacon or tongues per cwt.	0	6	
Hardware per ton	2	6	
Harrows each	0	6	
Hay and straw per bale of 1 cwt. and less	0	4	
Hemp per ton	3	4	
Herrings (fresh) per 37½ gallons	0	2	
Herrings cured per 26⅔ gallons	0	3	
Hides—			
Ox cow or horse (wet or dry) each	0	1	
Hoops of wood per 120	0	1	
Iron hoops per ton	5	0	
Iron—			
Bar bolt rod and sheet per ton	1	6	
Pig and old iron per ton	1	0	
Manufactured per ton	1	6	
Pots each	0	1	
Grates stoves and other ironmongery per ton	2	6	
Lath wood per bundle of 1 cwt. and less	0	1	
Lead per ton	2	0	
Leather per cwt.	0	3	
Lime and limestone per ton	1	6	
Lobsters per dozen	0	2	

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A.D. 1903.								s.	d.
<i>Salen (Mull).</i>	Machinery per ton	...	...	...	...	...	...	3	4
	Masts and spars 10 inches in diameter and upwards each	...	...	...	...	...	...	2	6
	Milk per 3 gallons	...	...	...	...	...	...	0	1
	Moss litter per cwt.	...	...	...	...	...	...	0	4
	Motor cycles each	...	...	...	...	...	...	1	0
	Motor cars each	...	...	...	...	...	...	5	0
	Musical instruments—								
	Pianos harmoniums and organs each	...	...	...	...	...	...	2	0
	Cases (empty) each	...	...	...	...	...	...	0	3
	Nets per 5 cubic feet	...	...	...	...	...	...	0	6
	Oakum per ton	...	...	...	...	...	...	3	4
	Oil (paraffin and other oils) per barrel of 36 gallons	...	...	...	...	...	...	0	6
	Oil (paraffin and other oils) per large tin of 18 gallons	...	...	...	...	...	...	0	3
	Oil (paraffin and other oils) per small tin of 9 gallons and less	...	...	...	...	...	...	0	2
	Onions per cwt	...	...	...	...	...	...	0	4
	Oranges per cwt.	...	...	...	...	...	...	0	4
	Oysters per 100	...	...	...	...	...	...	0	3
	Paint per cwt.	...	...	...	...	...	...	0	3
	Parcels (contents not particularly herein specified) not exceeding								
	28 lbs. each	...	...	...	...	...	...	0	1
	Peats per ton	...	...	...	...	...	...	1	0
	Pitch and tar per cwt.	...	...	...	...	...	...	0	2
	Plants of trees or shrubs per ton	...	...	...	...	...	...	2	6
	Plants of trees or shrubs per mat or bale of 1 cwt. or less	...	...	...	...	...	...	0	4
	Ploughs each	...	...	...	...	...	...	0	6
	Potatoes per ton	...	...	...	...	...	...	1	6
	Poultry per half dozen	...	...	...	...	...	...	0	2
	Rags and old rope per ton	...	...	...	...	...	...	2	0
	Rabbits (in hampers or bulk) per dozen	...	...	...	...	...	...	0	2
	Sails per ton	...	...	...	...	...	...	3	4
	Salt per ton	...	...	...	...	...	...	1	0
	Sand per ton	...	...	...	...	...	...	0	9
	Shellfish other than those herein particularly specified per cwt.	...	...	...	...	...	...	0	2
	Skins—								
	Calf goat sheep lamb or dog per score	...	...	...	...	...	...	0	4
	Slates per ton	...	...	...	...	...	...	2	0
	Spirits per barrel of 36 gallons	...	...	...	...	...	...	0	9
	Spirits per barrel of 20 gallons and under	...	...	...	...	...	...	0	6
	Spirits per case of 12 bottles and under	...	...	...	...	...	...	0	3
	Stones asphalt pipes or other heavy building material per								
	16 cubic feet	...	...	...	...	...	...	1	0
	Steel per ton	...	...	...	...	...	...	3	0
	Sugar per ton	...	...	...	...	...	...	3	4
	Tallow soap and candles per ton	...	...	...	...	...	...	2	0

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	s.	d.	A.D. 1903.
Tea per ton	10	0	<u>Salen (Mull).</u>
Tiles per ton	2	0	
Tin and zinc per ton	2	6	
Tobacco per ton	10	0	
Turnips per ton	1	0	
Turpentine and varnish per 36 gallons or under	0	6	
Vegetables (not enumerated) per ton	2	0	
Vitriol per 10 gallons	0	3	
Wine in bottles per dozen and under	0	3	
Wine per 10 gallons	0	3	
Wood—			
Fir pine larch and other descriptions not enumerated per 50 cubic feet... ..	2	0	
Oak or wainscot per 50 cubic feet... ..	2	6	
Firewood 216 cubic feet	2	0	
Handspikes per 20	0	9	
Oars each	0	1	
Spokes and felloes of wheels not exceeding 2 feet in length per 20	0	6	
Spokes and felloes of wheels exceeding 2 feet in length per 20... ..	0	9	
Stobs for fences per 20	0	3	
Barrel staves per 1000 superficial feet	1	6	
Lignum vitæ fustic logwood mahogany and rosewood per ton	2	6	
Wire per cwt.	0	2	
Wire netting per cwt.	0	3	
Wool per cwt.	0	3	
Yarn—			
Lint per ton... ..	3	4	
Cotton per ton	3	4	
Tow per ton... ..	2	6	
Hemp per ton	2	6	
Worsted per ton	3	4	

ALL OTHER GOODS NOT PARTICULARLY ENUMERATED ABOVE.

Light goods per cubic foot	0	2
Heavy goods per ton	2	6

In charging the rates on goods the gross weight or measurements of all goods to be taken and for any less weights measures and quantities than those above specified a proportion of the respective rates shall be charged.

In weighing and measuring packages to be included.

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A.D. 1903.
Salen (Mull).

III.—RATES FOR USE OF CRANES WEIGHING MACHINES AND
SHEDS AND STORES.

(1) *Rates of Cranage.*

					s.	d.
All goods of packages not exceeding 1 ton	...	...	...	...	0	4
Exceeding 1 ton and not exceeding 2 tons	...	...	...	...	0	6
Exceeding 2 tons and not exceeding 3 tons	...	..	...	...	0	8
Exceeding 3 tons and not exceeding 4 tons	...	...	...	...	0	10
Exceeding 4 tons and not exceeding 5 tons	...	...	...	...	1	0
Exceeding 5 tons and not exceeding 6 tons	...	...	...	...	1	2
Exceeding 6 tons and not exceeding 7 tons	...	...	...	...	1	4
Exceeding 7 tons and not exceeding 8 tons	...	...	...	...	1	6
Exceeding 8 tons and not exceeding 9 tons	..	...	...	...	1	10
Exceeding 9 tons and not exceeding 10 tons	...	...	...	...	2	4
Exceeding 10 tons	...	...	...	...	3	6

(2) *Weighing Machines.*

For goods weighed for each ton or part of a ton	...	...	...	0	2
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(3) *Shed and Store Dues.*

For each article herein enumerated or referred to which shall remain in the sheds and stores or on the pier or other works for a longer period than twenty-four hours a sum equal to fifty per cent. additional upon the respective rates herein specified.

IV.—RATES ON PASSENGERS AND PASSENGERS' LUGGAGE LANDED OR
EMBARKED FROM THE PIER.

For every person above 12 years of age landing from or embarking in any vessel	...	...	...	...	...	...	...	0	3
For every person under 12 years of age with parent guardian master or servant	...	...	...	...	...	...	...	0	1
Children in arms	free.								

Passengers' luggage—

Light articles carried by passengers free.

Trunks boxes and portmanteaux exceeding 1 cwt. each	...	...	0	2
Other articles of luggage not exceeding 1 cwt. each	...	...	0	1

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